

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Team # 3	CCRB Case #: 201310382	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 10/20/2013 8:15 PM	Location of Incident: Intersection of 144th Avenue and Farmers Boulevard	18 Mo. SOL 4/20/2015	Precinct: 113
Date/Time CV Reported Mon, 10/28/2013 3:48 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/04/2013 12:57 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Conforti	26403	940995	PBQST/F
2. DTS Edgar Rodriguez	6054	898406	PBQST/F

Officer(s)	Allegation	Investigator Recommendation
A . DTS Edgar Rodriguez	Abuse: Det. Edgar Rodriguez searched the car in which § 87(2)(b) was an occupant.	A . Substantiated
B . POM Daniel Conforti	Force: PO Daniel Conforti used physical force against § 87(2)(b)	B . Exonerated
C . DTS Edgar Rodriguez	Force: Det. Edgar Rodriguez used physical force against § 87(2)(b)	C . Exonerated
D . POM Daniel Conforti	Force: PO Daniel Conforti used a chokehold against § 87(2)(b)	D . Unsubstantiated

Case Summary

On October 28, 2013, § 87(2)(b) filed this complaint with the Internal Affairs Bureau (IAB) via telephone, generating IAB log 2013-45799. On November 4, 2013, the Civilian Complaint Review Board (CCRB) received this complaint.

On October 20, 2013, at approximately 8:15 p.m., § 87(2)(b) was driving in the vicinity of the intersection of 144th Avenue and Farmers Boulevard in Queens when he was pulled over by an unmarked patrol car. The following allegations resulted:

- **Allegation A – Abuse of Authority: Det. Edgar Rodriguez searched the car in which § 87(2)(b) was an occupant.**

§ 87(2)(g)

As such, it is therefore recommended that **Allegation A** be closed as **substantiated**.

- **Allegation B – Force: PO Daniel Conforti used physical force against § 87(2)(b)**

- **Allegation C – Force: Det. Edgar Rodriguez used physical force against § 87(2)(b)**

§ 87(2)(g)

Thus, it is recommended that **Allegations B** and **C** be closed as **exonerated**.

- **Allegation D – Force: PO Daniel Conforti used a chokehold against § 87(2)(b)**

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **unsubstantiated**.

This case was not eligible for mediation because § 87(2)(b) was arrested as a result of this incident.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black man who § 87(2)(b) has black hair and brown eyes. § 87(2)(b)

Photographs of § 87(2)(b)

§ 87(2)(b) arrest photograph does not show any visible injuries; however, a gauze is shown to have been applied to the left side of his face, below his eye and on top of his cheekbone (encl. E4).

A photograph of § 87(2)(b) face which was taken at the time of his sworn-statement shows a dark curvy line above his left cheekbone (encl. E6).

CCRB Testimony

On December 5, 2013, § 87(2)(b) was interviewed at the CCRB (encl. E1-E3). His in-person statement was generally consistent with his initial complaint (encl. D3). § 87(2)(g)

On October 20, 2013, at approximately 8:15 p.m., § 87(2)(b) was driving a Ford SUV, with no tint on the front windows, down Farmers Boulevard in Queens when an unmarked patrol car stopped him at the intersection of 144th Avenue and Farmers Boulevard in Queens. Two officers, identified via investigation as Det. Edgar Rodriguez and PO Daniel Conforti, of Patrol Borough Queens South Task Force, exited the patrol car, and Det. Rodriguez approached § 87(2)(b) while PO Conforti approached the front passenger side of his vehicle. § 87(2)(b) rolled the front driver side window down and Det. Rodriguez asked him to produce his driver's license and car registration.

Det. Rodriguez eventually asked § 87(2)(b) to exit the vehicle, and § 87(2)(b) complied. § 87(2)(b) denied making any significant physical movements prior to exiting his vehicle. As § 87(2)(b) stepped out, his car started moving forward. § 87(2)(b) immediately reentered his car and parked it. § 87(2)(b) again exited the car and was then escorted to its rear by PO Conforti. At that point, § 87(2)(b) observed Det. Rodriguez enter his driver side door but he could not see the extent of the entry any further or Det. Rodriguez' actions any further.

Soon thereafter, PO Conforti stated, "What you got in your mouth?" § 87(2)(b) denied having any object inside his mouth, and PO Conforti asked him whether he was trying to swallow an object. PO Conforti then lowered his upper body, charged at § 87(2)(b) and tackled him with his right shoulder, hitting § 87(2)(b) in his upper body. § 87(2)(b) fell down to the ground on his right side as a result of the tackle.

§ 87(2)(b) stated in his initial complaint that he dropped his hat and then picked it up immediately prior to PO Conforti accusing him of placing an object inside his mouth and charging at him. However, § 87(2)(b) stated during his sworn statement that he was still holding his hat, while by the rear of the vehicle, and did not drop it until the beginning of the struggle. § 87(2)(b) also denied making any significant physical movements towards any parts of his body prior to PO Conforti charging at him.

While on the ground, § 87(2)(b) was first stomach down with his right arm underneath his body. PO Conforti then grabbed § 87(2)(b) arms, pulled them behind his back, and then started choking him by pressing his hands against the front and back parts of his neck. PO Conforti repeatedly applied pressure to § 87(2)(b) neck and released it for approximately a minute, causing § 87(2)(b) to have difficulties breathing. PO Conforti's knee was pressed against § 87(2)(b) back during this interaction.

At some point, Det. Rodriguez approached § 87(2)(b) and started stomping on his back and kicking him, approximately ten times, in the back, neck, and head area. PO Conforti and Det. Rodriguez repeatedly ordered § 87(2)(b) to spit the content of his mouth out. Soon thereafter, the officers handcuffed § 87(2)(b) and PO Conforti then punched § 87(2)(b) once, right under his left eye, with a closed fist. As a result of the punch, § 87(2)(b) sustained a curvy laceration, which is approximately two inches long, between his left eye and cheekbone. Soon thereafter, additional units arrived at the scene.

At some point after the struggle, an officer informed § 87(2)(b) that he had been stopped due to smoke inside his vehicle. Although § 87(2)(b) admitted to being a cigarette smoker, he denied smoking inside his vehicle around the time of the incident. § 87(2)(b) admitted having two air fresheners and a handicap parking pass hanging from his rearview mirror at the time of the incident. § 87(2)(b) denied possessing any narcotics at the time of the incident. § 87(2)(b) denied having any object inside his mouth or resisting during the incident. § 87(2)(b) car was eventually released to his brother without being impounded.

Canvass for Witnesses

On March 19, 2014, the undersigned investigator canvassed the vicinity of the incident location by knocking on several doors and speaking with employees of nearby commercial establishments and residents living in the area. All persons approached denied witnessing the incident. The undersigned investigator left his business card with each of the persons he spoke with and asked them to provide his contact information to any witnesses they may encounter. To date, no witnesses have contacted the undersigned investigator in regards to this case.

NYPD Statements:

Subject Officer: PO DANIEL CONFORTI

- *PO Conforti was § 87(2)(b) at the time of the incident. He is a white man, § 87(2)(b) and has black hair and blue eyes.*
- *On October 20, 2013, PO Conforti was assigned to the Driving While Intoxicated unit. PO Conforti was dressed in uniform and was working with Det. Rodriguez in an unmarked patrol car. PO Conforti worked from 5:30 p.m. on October 20, 2013, to 2:05 a.m. on October 21, 2013.*

Memo Book Entries

At 8:05 p.m., PO Conforti observed a Ford SUV at the intersection of 144th Avenue and Farmers Boulevard with a large number of air fresheners hanging from its rearview mirror. The driver, § 87(2)(b) was also smoking an object that did not appear to be a cigarette. The vehicle was stopped and Det. Rodriguez asked § 87(2)(b) to step out of the vehicle. § 87(2)(b) had a nervous demeanor. As § 87(2)(b) stepped out, the vehicle started to roll. After the vehicle stopped rolling and was parked, § 87(2)(b) walked to the rear of the vehicle and would not face PO Conforti. PO Conforti instructed § 87(2)(b) to turn around and § 87(2)(b) proceeded to suddenly reach into his front right pocket. PO Conforti grabbed § 87(2)(b) right wrist in fear he was going to present a weapon. § 87(2)(b) then attempted to place an item in his mouth. A struggle ensued and § 87(2)(b) refused to comply with orders to put his hands behind his back. § 87(2)(b) continued resisting for several minutes by flailing his arms and putting his arms under his body while still attempting to place the item inside his mouth. § 87(2)(b) also attempted to get up to his feet. Additional units were requested and § 87(2)(b) was eventually handcuffed. § 87(2)(b) had a visible laceration to his face. A clear plastic case with a red straw containing a white powdery substance, which appeared to be crack cocaine, was found by § 87(2)(b) head, in the grass area (encl. F1-F4).

Aided and Line-of-Duty Injury Reports

The reports indicate that PO Conforti sustained an injury to his left hand while attempting to handcuff a perpetrator who resisted arrest and lunged at him. PO Conforti and Det. Rodriguez eventually fell down to the ground with the perpetrator (encl. H4-H5).

Witness' Statement – Injury to Member of the Department Report

The report indicates that while attempting to handcuff a resisting perpetrator, PO Conforti observed Det. Rodriguez drop to one knee, grimace, and state that he had injured his leg (encl. H6).

Criminal Court Complaint and Supporting Deposition Report

The report indicates that PO Conforti observed § 87(2)(b) drive a vehicle with multiple air fresheners hanging from its rear view mirror while smoking an object which did not appear to be

a cigarette. When PO Conforti instructed § 87(2)(b) to turn and face the car, he refused to comply. The report further indicates that, at that point, PO Conforti attempted to handcuff § 87(2)(b) who then resisted arrest by flailing his arms and tucking them underneath his body. § 87(2)(b) then removed the object, which was eventually determined to contain crack cocaine, from one of his pants pockets and placed it inside his mouth. The object eventually fell out of § 87(2)(b) mouth while he resisted arrest and was recovered from the ground (encl. H7-H10).

CCRB Testimony

On April 15, 2014, PO Conforti was interviewed at the CCRB (encl. I2-I4). His statement is summarized below.

On October 20, 2013, at approximately 8:05 p.m., PO Conforti observed § 87(2)(b) driving a Ford SUV, directly next to the patrol car, which had multiple air fresheners hanging from its rearview mirror. § 87(2)(b) was also smoking an object which did not appear to be a cigarette due to its small size. PO Conforti could not describe the object any further. At that point, PO Conforti decided to stop § 87(2)(b) due to the air fresheners obstructing his view.

PO Conforti and Det. Rodriguez stopped the vehicle and approached its driver side. The driver seat window was rolled down. § 87(2)(b) was acting nervously by stuttering, rambling, and his hands were also shaking. Based on § 87(2)(b) demeanor and the officers' prior observation, the officers instructed him to exit the vehicle. PO Conforti could not see anything significant inside the vehicle, and no smell emanated from it. PO Conforti added the area was dark and that the officers had to use their flashlights during the stop. PO Conforti did not know whether Det. Rodriguez pointed his flashlight towards the vehicle, but he admitted to pointing his towards the driver seat area.

When § 87(2)(b) started exiting the vehicle, it started rolling and he immediately reentered it to park it. PO Conforti and § 87(2)(b) then started walking towards the rear of the vehicle, and § 87(2)(b) started blading his body from PO Conforti, thus concealing his front right side by facing his right shoulder and back area towards PO Conforti. PO Conforti ordered § 87(2)(b) to face him multiple times, but § 87(2)(b) would not comply. PO Conforti could not see § 87(2)(b) hand movements until he very quickly reached towards his waistband and entered his front right pocket with his right hand. PO Conforti did not observe § 87(2)(b) make any additional significant physical movements, or any bulges on him.

At that point, PO Conforti grabbed § 87(2)(b) right wrist because he feared that § 87(2)(b) would pull out a weapon. § 87(2)(b) then started flailing his arms and pulling his arm up, along with PO Conforti's, towards his mouth. § 87(2)(b) was holding a stamped glassine envelope with his hand. § 87(2)(b) and PO Conforti then fell down to the ground. PO Conforti still had a hold of § 87(2)(b) right arm at that point. § 87(2)(b) repeatedly kicked his feet and attempted to pull his body up to his feet. PO Conforti continuously attempted to grab and control § 87(2)(b) arms throughout the struggle. § 87(2)(b) and PO Conforti rolled back and forth onto the street and grass area throughout the struggle.

At some point, Det. Rodriguez arrived and assisted with restraining § 87(2)(b) however, PO Conforti did not know what actions he took during the struggle. At another point, PO Conforti punched § 87(2)(b) once on the left side of his face with a closed fist, and the officers were then able to pull his arms behind his back and handcuff him. § 87(2)(b) resisted arrest and attempted to place the envelope inside his mouth throughout the struggle, which lasted for approximately five minutes. At some point during the struggle, PO Conforti lost sight of the envelope after § 87(2)(b) started clenching his fist while holding it. After the struggle ended, the envelope, which was eventually determined to contain crack cocaine, was recovered from the ground. Additional units arrived after § 87(2)(b) was handcuffed.

PO Conforti did not see Det. Rodriguez enter § 87(2)(b) vehicle during the incident. PO Conforti denied using any additional force during the incident. PO Conforti denied observing Det. Rodriguez kick or stomp on § 87(2)(b). The object § 87(2)(b) had smoked was not recovered as a result of this incident. PO Conforti did not recall whether § 87(2)(b) appeared intoxicated, nor whether there were any signs that he had consumed narcotics. PO Conforti did not smell any significant odor coming from § 87(2)(b) breath. § 87(2)(b) vehicle was eventually released to another individual.

Subject Officer: DET. EDGAR RODRIGUEZ

- Det. Rodriguez was § 87(2)(b) at the time of the incident. He is a Hispanic man, § 87(2)(b) and has black hair and brown eyes.
- On October 20, 2013, Det. Rodriguez worked the same tour and assignment as PO Conforti.

Memo Book Entries

At 8:15 p.m., Det. Rodriguez observed a Ford in the right lane with numerous air fresheners hanging from its rearview mirror. The driver, § 87(2)(b) was smoking while driving. § 87(2)(b) made a right turn onto Farmers Boulevard and Det. Rodriguez turned the lights on and pulled § 87(2)(b) over at the intersection of 144th Avenue and Farmers Boulevard. At that time, § 87(2)(b) window was open and was asked for his license which he then produced from his wallet. § 87(2)(b) stated, “My sister works § 87(2)(b) and asked for courtesy.” At that time, Det. Rodriguez asked § 87(2)(b) to exit his vehicle. § 87(2)(b) exited the vehicle which was still in gear and began to roll. § 87(2)(b) ran back into the car and placed it in park. As § 87(2)(b) walked to the rear of the car, PO Conforti observed him place a substance inside his mouth. § 87(2)(b) refused to comply with PO Conforti’s directions and began to turn and get away. At that time, he was brought to the ground and refused to be handcuffed. At 8:30 p.m., Det. Rodriguez sustained an injury to his leg and felt a burning pain under his left knee (encl. J2-J4).

Arrest Report Number § 87(2)(b)

The report indicates that § 87(2)(b) was operating a vehicle with multiple air fresheners hanging from the rear view mirror, and that he attempted to place crack cocaine inside his mouth. § 87(2)(b) failed to comply with directions given by PO Conforti and resisted arrest, causing PO Conforti and Det. Rodriguez to fall down to the ground. § 87(2)(b) also tucked his arms underneath his body. The report further indicates that § 87(2)(b) was intoxicated after having smoked marijuana, and that physical force was used to restrain and control him (encl. H1-H3).

Statements to Medical Personnel

§ 87(2)(a) PHL § 18(6)

Aided and Line-of-Duty Injury Reports

The reports indicate that Det. Rodriguez sustained an injury to his left leg and knee while attempting to arrest a perpetrator who resisted arrest and had lunged at PO Conforti. Det. Rodriguez sustained the injury when he, PO Conforti, and the perpetrator all fell down to the ground (encl. K1-K2).

Witness’ Statement – Injury to Member of the Department Report

The report indicates that while Det. Rodriguez attempted to handcuff a resisting perpetrator, the perpetrator began to get up off the ground and then lunged at PO Conforti. PO Conforti had a

grip on the perpetrator's left wrist when PO Conforti, Det. Rodriguez, and the perpetrator all fell down to the ground. The perpetrator then tucked his left arm underneath his body along with PO Conforti's left hand. PO Conforti's hand was injured as a result of the struggle (encl. K3).

CCRB Testimony

On April 24, 2014, Det. Rodriguez was interviewed at the CCRB (encl. L2-L3). His statement is generally consistent with that of PO Conforti. § 87(2)(g)

The object § 87(2)(b) smoked did not appear to be a real cigarette, but instead appeared to be a white marijuana "blunt" which had been rolled. Det. Rodriguez first approached the driver side while PO Conforti approached the front passenger side. As Det. Rodriguez approached the vehicle, he smelled a strong odor of burned marijuana emanating from its interior. The odor remained even after § 87(2)(b) exited the vehicle, and § 87(2)(b) eyes were bloodshot and his speech was slurred. Det. Rodriguez recognized the smell of marijuana from his training as an officer and prior drug-related arrests. Det. Rodriguez also smelled the odor of marijuana come from § 87(2)(b) breath.

Det. Rodriguez first stated that, before the struggle, he only pointed his flashlight towards the driver seat area of the vehicle to look for the object § 87(2)(b) had smoked without entering the vehicle. Det. Rodriguez added that he again looked inside the car, after the struggle, without entering it. However, Det. Rodriguez later admitted to, at some point, breaching the threshold of the vehicle with his head while looking for the object. Det. Rodriguez did not see § 87(2)(b) make any significant physical movements towards any parts of his body or of the car. Det. Rodriguez wished to conduct a sobriety and coordination test of § 87(2)(b) after his first inspection of the driver seat area.

Det. Rodriguez assisted with the restraining of § 87(2)(b) by attempting to grab his right arm. Each time § 87(2)(b) tried to stand back up, during the struggle, Det. Rodriguez pushed him back down on his buttocks area by using his hands, causing him to fall forward onto the grass area. PO Conforti had a continuous grip on § 87(2)(b) left arm throughout the struggle and did not release it until § 87(2)(b) was handcuffed. Det. Rodriguez did not use any additional physical force against § 87(2)(b).

Det. Rodriguez did not observe PO Conforti make physical contact with § 87(2)(b) throat, or punch him, during the incident. Det. Rodriguez denied using any additional force against § 87(2)(b). § 87(2)(b) was trying to discard items from his pockets, including the glassine envelope, onto the ground during the struggle. Det. Rodriguez did not observe § 87(2)(b) try to place the envelope inside his mouth. Det. Rodriguez stated that the odor of marijuana still emanated from the vehicle after the struggle ended. § 87(2)(b) vehicle was not impounded.

Medical Records

At the time of their interviews, § 87(2)(b) and PO Conforti refused to grant the CCRB access to any medical records generated as a result of this incident.

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

NYPD Documents

Patrol Borough Queens South Task/Force Roll Call

The Roll Call from the date of the incident shows that PO Conforti and Det. Rodriguez were assigned to the Driving While Intoxicated (DWI) unit in vehicle number 507 (encl. M1-M4).

SPRINT Report Number D13102019910

The report shows that PO Conforti and Det. Rodriguez first made a call for assistance and indicated that § 87(2)(b) had been placed under arrest. At some point, a sergeant-on-patrol assigned to the 113th Precinct indicated that none of the officers were injured; however, PO Conforti and Det. Rodriguez later made a call indicating that they had sustained minor injuries. Soon thereafter, a call requesting an ambulance was made for § 87(2)(b) and Det. Rodriguez, due to having sustained injuries. The call indicated that Det. Rodriguez had sustained a sprained knee following a car stop. Officers assigned to different task force units within the confines of the 113th Precinct also responded to the scene (encl. M9-M16).

113th Precinct Command Log

The Command Log entry for § 87(2)(b) shows that he arrived at the stationhouse at 8:50 p.m. His physical condition is listed as injured with a laceration and it also indicates that medical attention was requested for him. At 2:38 a.m., on the day after the date of the incident, § 87(2)(b) was transported to Queens Central Booking by PO Paul Searchwell and PO James Vogel, of Patrol Borough Queens South Task/Force (encl. M6).

Property Voucher Number § 87(2)(b)

The property voucher shows that a clear bag containing a straw and crack cocaine residue was vouchered, for § 87(2)(b) as arrest evidence (encl. N1-N2).

Detective Edgar Rodriguez Employment Status

On January 26, 2015, the undersigned received from the NYPD's Monitoring and Analysis Section confirmation that Det. Rodriguez retired from the NYPD on October 1, 2014 (encl. S20).

Attempt to Obtain Medical Treatment of Prisoner Report

The undersigned investigator submitted to IAB requests for any medical treatment of prisoner report filed for § 87(2)(b) with the 113th Precinct, Queens Court Section, and Patrol Borough Queens South Task/Force. Each of the requests was returned with a note indicating that no such report was available (encl. S3-S5).

Attempts to Obtain Video Evidence

On December 17, 2013, the undersigned investigator mailed to Springfield Gardens Church of Christ a subpoena requesting a copy of the video footage captured by the cameras located outside of the premises (encl. T3). Because no recording had been received, the undersigned investigator placed multiple follow-up calls to § 87(2)(b), the person in charge of the premises, between December 30, 2013, and March 19, 2014, which were unsuccessful. During that same timespan, no recording was received. On March 19, 2014, the undersigned investigator appeared at the premises to attempt to retrieve the video footage; however, no one was present to answer the door. On May 30, 2014, the undersigned investigator called § 87(2)(b) who stated that he eventually managed to access the video surveillance system but that the footage from the date of the incident was not available anymore by that point.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Status of Civil Proceedings

- As of September 12, 2014, approximately nine months following the expiration of the filing deadline, [§ 87(2)(b)] has not filed a notice of claim with the City of New York in regards to this incident (encl. P).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. B4).

Subject Officers CCRB History

- PO Conforti has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. B1).
- Det. Rodriguez was a member of the service for twenty-three years and there were no substantiated CCRB allegations against him (encl. B2-B3).

Conclusion

Identification of Subject Officers

PO Conforti and Det. Rodriguez admitted to interacting with [§ 87(2)(b)]

Investigative Findings and Recommendations

Allegation Not Pled

[§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A – Abuse of Authority: Det. Edgar Rodriguez searched the car in which

§ 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) was stopped for a VTL violation, that he failed to properly park his car and quickly reentered it after first exiting it, that Det. Rodriguez remained by the driver seat door while § 87(2)(b) and PO Conforti walked to the rear of the vehicle, that Det. Rodriguez eventually entered the car, and that the car was not impounded. § 87(2)(b) stated that Det. Rodriguez entered his vehicle before the initiation of the struggle, although he could not describe the entry any further. § 87(2)(b) denied having any contraband inside his vehicle or having smoked any object there around the time of the incident.

Det. Rodriguez and PO Conforti stated that they observed § 87(2)(b) smoke an object, prior to the stop, which did not appear to be a cigarette and that they believed it could contain marijuana based on that observation. Det. Rodriguez stated that, as he approached the vehicle, he smelled a strong odor of burned marijuana coming from the vehicle, while PO Conforti stated that no smell emanated from it. Det. Rodriguez first stated that he looked inside the driver seat area without entering the vehicle both before and after the struggle. However, Det. Rodriguez later admitted to breaching the threshold of the vehicle with his head while looking for the object § 87(2)(b) had smoked, without specifying when he did so. It is also undisputed that no marijuana was recovered as a result of this incident, nor was the object, and no contraband or evidence was recovered from the car.

In People v. Aquino, 119 A.D.2d 464 (1st Dept. 1986), the First Department determined that an officer breaching the threshold of a car with his head amounts to a search of it, and that an ordinary traffic infraction alone will not justify a vehicle search (encl. A1-A2). In addition, according to People v. Berberena, 264 A.D.2d 670 (1st Dept. 1999), an officer does not have a founded suspicion that criminality is afoot, which is itself short of a probable cause, in the absence of any suspicious circumstances, based on a person's nervous behavior of a minimal and equivocal nature (encl. A3-A4). Moreover, People v. Galak, 81 N.Y.2d 463 (1993), held that a warrantless search of a vehicle is permissible when officers have probable cause to believe that evidence or contraband will be found there (encl. A5-A8). Lastly, according to People v. Johnson, 25 Misc. 3d 1214A (Sup. Ct., Queens Co. 2009), the smell of marijuana alone, coming from a vehicle, is sufficient to provide an officer with probable cause to search a vehicle (encl. A9-A10).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Force: PO Daniel Conforti used physical force against § 87(2)(b)

Allegation C – Force: Det. Edgar Rodriguez used physical force against § 87(2)(b)

§ 87(2)(b) stated that PO Conforti first charged at and tackled him, thus taking him to the ground. § 87(2)(b) also stated in his initial statement that he had dropped his hat and then picked it up immediately before the struggle started. However, § 87(2)(b) later indicated during his sworn statement that he did not drop his hat prior to the beginning of the struggle. § 87(2)(b) added that PO Rodriguez then stomped on and kicked him approximately ten times. § 87(2)(b) further added that, after he was handcuffed, PO Conforti punched him in the face, causing him to sustain a laceration to the left side of his face.

PO Conforti stated that after § 87(2)(b) had concealed part of his body and suddenly reached into his pocket, he grabbed his arm. § 87(2)(b) then started flailing his arms and trying to place an object inside his mouth. PO Conforti and § 87(2)(b) then fell down to the ground where § 87(2)(b) continued attempting to place the object into his mouth while PO Conforti simply pulled his arm away from his mouth. PO Conforti eventually punched § 87(2)(b) once in the face and then managed to handcuff him. Det. Rodriguez stated that he simply tried to pull § 87(2)(b) right arm and pushed him back down each time he tried to get back up.

It is undisputed that § 87(2)(b) was brought down to the ground and eventually punched in the face. In contention, however, are whether § 87(2)(b) was resisting arrest, when the punch occurred, and whether any excessive force was used against § 87(2)(b).

According to the Patrol Guide Procedure, 203-11 (encl. A11-A12), only that amount of force necessary to overcome resistance will be used to effect an arrest, or to take a mentally ill or emotionally disturbed person into custody.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

In addition, both officers sustained injuries and received medical attention as a result of this incident, all of which were documented. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Thus, is recommended that **Allegations B** and **C** be closed as **exonerated**.

Allegation D – Force: PO Daniel Conforti used a chokehold against § 87(2)(b)

§ 87(2)(b) stated that, during the struggle, PO Conforti choked him while accusing him of having narcotics inside his mouth. Although PO Conforti denied choking § 87(2)(b) and Det. Rodriguez denied observing PO Conforti do so, they did indicate that § 87(2)(b) was trying to ingest narcotics. However, PO Conforti stated that he lost sight of the envelope during the struggle, while § 87(2)(b) was still holding it, and Det. Rodriguez denied observing § 87(2)(b) attempt to place it inside his mouth.

§ 87(2)(b) arrest photographs do not show any visible marks to his neck.

§ 87(2)(g)

Thus, is recommended that **Allegation D** be closed as **unsubstantiated**.

Team: 3

Investigator: _____ Keyne Jean Villert _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Updated: February 17, 2015